

# SMITH v. CARTWRIGHT et al

21CV45132

## PLAINTIFF'S MOTIONS TO COMPEL INITIAL RESPONSES TO DISCOVERY

At its essence, this is a landlord-tenant dispute. Defendant is the record owner of 5348 Messing Road in Valley Springs and leased the property to plaintiff with an option to purchase at a fixed sum within two years. According to plaintiff, defendant reneged on the agreement, and secretly recouped rent from tenants in the “front” house on the property despite plaintiff’s rental agreement purportedly covering both residences; defendant has a contrary interpretation of events.

The litigation history between plaintiff and defendant is complex, as reflected in the various legal proceedings between them. (See 20CH45068, 21UD13373, 21UD13416, and 21CH45278.) In this seemingly straightforward civil action, plaintiff alleges thirteen (13) causes of action, ranging from breach of contract to invasion of privacy and assault.

Before the Court is a single motion to compel defendant’s responses to four sets of discovery, to wit: form interrogatories, special interrogatories, request for admissions, and request for production of documents. The discovery was served in a UD action (21UD13373) on or about 04/07/21. Although there appeared to be some concern regarding the propriety of the discovery when served, counsel in the UD action (who happened to also serve as counsel here) stipulated on behalf of landlord to treat that discovery as having been served in this civil action, with a service date of 08/15/21. Counsel then promptly withdrew from representing landlord in this civil action.

Despite representing himself, landlord served – on or about 09/14/21 – objections to all four sets of discovery. The objections were technically served in the UD action, and included an objection based on the discovery cut-offs for UD cases. According to defendant, the discovery was served after the initial trial date, which rendered them void *ab initio* per CCP §2024.020. The objection is not well taken. The right to conduct discovery in UD proceedings is tied not to “the initial trial date” as it is in ordinary civil cases, but rather to “the date set for trial.” (See CCP §2024.040(b)(1).) In other words, discovery automatically follows a new trial date, and so long as 04/07/21 was more than 5 days before trial, the discovery served in the UD action was proper.

Nevertheless, plaintiff herein has moved for an order to compel initial responses to all discovery. That is the wrong motion. Defendant objected to the discovery in toto, which does not require a verification. (See CCP §§ 2030.250(a), 2131.250(a), 2033.240(a); *Blue Ridge Ins. Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 344.) Since there was

an initial response, plaintiff was required to bring a motion for *further* responses to overrule objections, and include with that motion the statutorily required separate statement. (See CCP §§ 2030.310(a)(3), 2031.310(a)(3), 2033.290(a)(2); CRC 3.1345.)

As such, the motion to compel an initial response is DENIED, without prejudice to file an appropriate motion if timelines otherwise allow. As the motion is denied, plaintiff's request for sanctions is also DENIED.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order pursuant to Rule of Court 3.1312 is required.

**LVNV FUNDING v. COPPS**

**21CF13587**

**PLAINTIFF'S RENEWED MOTION  
FOR JUDGMENT ON THE PLEADINGS**

This is a limited jurisdiction collections case involving a debt of \$2,793.06. Before the Court is an unopposed motion by plaintiff for a judgment on the pleadings directed at defendant's barren answer.

Plaintiff contends it is entitled to a judgment in its favor based upon defendant's non-substantive answer. Defendant filed a Judicial Council form answer, and tendered a first appearance fee, but in the answer she failed to check any of the boxes. As such, she has neither admitted anything, nor has she denied anything.

A statutory motion for judgment on the pleadings is similar to a demurrer, except that the motion (1) can be made at any time 30 days prior to the initial trial date, but (2) only after defendant has answered and (3) only on the grounds of subject-matter jurisdiction or failure to state a cause of action. (CCP §438(c)-(f).) The rules governing pleading scrutiny are the same as those applicable to demurrers. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4<sup>th</sup> 316, 321. See *Schabarum v. California Legislature* (1998) 60 Cal.App.4<sup>th</sup> 1205, 1216.) The present motion is not technically based on a failure to state since defendant did not make any statements. This more properly should have been a motion to strike the answer. Nevertheless, the fact remains that defendant needs to check at least one box on her answer to put anything in issue.

The motion for judgment on the pleadings is GRANTED, but defendant shall have 30 days leave to amend to file a proper Answer. If no Answer is filed, then plaintiff may proceed via default prove-up.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.